

# Instructions

States are suggested to fill out this coversheet for each Medicaid managed care contract action (that may or may not include a rate certification) submitted to CMS for review. This cover sheet is to be used only for State submission of its contracts with Medicaid managed care plans. Multiple plan documents can be included within this submission and itemized under Section H. All submissions related to State contract actions with Enrollment Brokers and External Quality Review Organizations should occur via the CMS Regional Office mailbox only and are not subject to this cover sheet. Detailed Instructions for State submission of contracts and rate certifications for Medicaid managed care plans:

- All submissions must be sent to both the (1) CMS Ratesetting mailbox (MMCratesetting@cms.hhs.gov); and (2) applicable Regional Office mailbox for CMS review of rate development and contract actions. If states have questions or issues related to this coversheet or submission of contract and rate certifications to the two CMS mailboxes, feel free to contact both the MMCratesetting mailbox and RO mailbox for assistance.
- The following detail must be included in the subject line of the email: State Initials, Full Program Name, Effective Date of action, Rate Submission (R) or no rate submission (NR). (for example, AZ-Acute Care-October 2017-R).
- A complete submission must include the following:
  - If the action is a contract action without a rate certification: (1) a cover sheet with Parts I and III completed (note that for a non-risk contract or PCCM entity contract only Part I of the cover sheet must be completed); and (2) draft or executed contract action(s), including all attachments associated with the contract action(s).
  - If the action is a risk-based contract action that includes a rate certification: (1) a cover sheet with Parts I and II completed; (2) a signed rate certification from an actuary meeting the qualifications in 42 CFR 438.2; (3) all supporting documentation referenced in the rate certification; (4) a draft or executed contract action(s) implementing the actuarially certified rates, including all attachments associated with the contract action(s).
- States currently utilize varying approaches to managed care contract and rate development. For example, some States may have 3 rate certifications that tie to the same contract with a managed care plan, while other States have 1 rate certification that is associated with contracts with managed care plans for 3 different programs. To reduce confusion on initial submissions, CMS has developed a standard submission process:
  - Each submission should contain a maximum of one rate certification. If a submission includes a rate certification, the rate certification and all supporting documentation referenced in the certification should be submitted via its one submission to CMS and include a cover sheet.
  - If the same contract action(s) include contracted rates associated with more than one rate certification, a State should clarify this within the cover sheet for the distinct submissions (i.e. within the "Purpose of the contract action(s) section), and for size purposes only include the attached contract actions within one submission to the CMS mailboxes.
  - If a contract action does not include a rate certification, the State may submit all associated draft or executed contracts with the managed care plans as one submission as long as the responses to Parts I and IV of the cover sheet applies to all actions. For example, if the State utilizes a model contracts with multiple managed care plans, all documentation may be included in one submission as long as responses Parts I and III of the cover sheet are consistent for all actions.
- Encrypted emails that require access to a secure website will not be accepted. CMS is unable to accept submissions that require access to a secure website. Documents must be submitted in an unsecure format. If a submission exceeds the state's email capacity, we recommend that the state separate the submission into multiple emails, detailing the number of emails included in the submission. For example, if the submission must be sent in three parts, we suggest adding the following language to the subject line: AZ-Acute Care-October 2017-R Email 1 of 3.

## Next Steps:

After a State has provided its initial submission to the MMCratesetting and CMS Regional Office mailboxes, CMS will review the submission to determine if it is complete prior to beginning a review.

If the submission includes a rate certification, CMS will conduct an initial assessment of the relevant documentation to assess if it is complete or incomplete for purposes of the rate review. If the package is deemed complete, the State will receive an email notification from the MMCratesetting mailbox with the control number of the rate review. This control number will be utilized for all future correspondence related to a rate certification and all CMS communication with the State will occur via the MMCratesetting mailbox. If the package is deemed incomplete, the State will receive an email notification from the MMCratesetting mailbox of the additional documentation necessary before CMS review of the rate certification can begin. A state may at any time, contact the MMCratesetting mailbox for a status update on CMS review of a rate certification.

The CMS Regional Office will conduct an assessment of the contract action(s) and supporting documentation provided. The CMS Regional Office mailbox will be utilized to communicate with the state on the contract action(s).

# Contract & Rate Certification Submission Cover Sheet

Is there a rate certification included in this submission?

Yes

If yes, please complete part I and II

No

If no, please complete part I and III

N/A

If the managed care program is non-risk or is a PCCM entity as outlined in 42 CFR 438.2, complete part I

## Part I. Identification of Contract Action

A. State

B. Managed Care  
Program Name(s)

Please enter the names of all programs to which the contract action and/or certification applies.

C. Date Submitted

D. Contract Effective  
Dates

From:

To:

If there are multiple contract actions associated with a single rate certification, please clarify the effective dates for each.

E. State contacts  
information

Please provide at least 2 contacts

Name

Title

Phone

Email

F. Managed Care Plans Providing  
Coverage

Check all that apply

MCO

HIO

PIHP

PAHP

PCCM Entity

## G. Purpose of the contract action(s)

Please provide a description of the purpose of this contract action(s).

## H. Filename of Contract Document(s)

Please enter the electronic file name(s) of the contract documentation being submitted. Please include any identifier(s) for contract action(s) (e.g. base contract, amendment 3, etc.). If a submission includes a rate certification that applies to more than one managed care contract and/or program, please identify the contract number(s) as applicable for each contract and/or program. This narrative box may also be used to include descriptions of the documents if clarification is needed.

If the number of attachments accompanying this submission exceeds the space provided on this form, check the following box and provide a document providing similar information for all additional attachments. Please refer to Part I of the coversheet.

I. Please indicate if the contract is a draft or executed contract

Draft

Executed

Complete this page if this contract action contains a rate certification.

| Part II. Identification of Certification Document |  |
|---------------------------------------------------|--|
| 1. Title of the Certification Document            |  |
| 2. Issuing Authority                              |  |
| 3. Date of Issuance                               |  |
| 4. Version Number                                 |  |
| 5. Other Identifying Information                  |  |

|                              |       |     |                   |  |
|------------------------------|-------|-----|-------------------|--|
| <b>A. Rate Certification</b> | From: | To: | <b>B. Date</b>    |  |
| <b>Effective Dates</b>       |       |     | <b>Certified:</b> |  |

If the contract period is different from the certification period, please explain the reason for the difference.

**C. Certification type** *Please check the applicable box (1, 2, or 3)*

|                                    |                                                                                                                                                        |                                                                                                                                                                                |
|------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <p><b>1. New Certification</b></p> | <p><b>2. Amendment to prior certification</b></p> <p><i>Please identify the previous submission:</i></p> <p>Date Submitted:</p> <p>Date Certified:</p> | <p><b>3. Replacement of previously submitted certification.</b></p> <p><i>Please identify the submission being replaced:</i></p> <p>Date Submitted:</p> <p>Date Certified:</p> |
|------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

|                   |  |
|-------------------|--|
| D. Actuarial Firm |  |
|-------------------|--|

|                                                                                                                                                         |      |       |       |       |
|---------------------------------------------------------------------------------------------------------------------------------------------------------|------|-------|-------|-------|
| <b>E. Actuarial Firm<br/>contacts information</b><br><i>Please provide contact<br/>information for the signing<br/>actuary and alternate contact(s)</i> | Name | Title | Phone | Email |
|                                                                                                                                                         |      |       |       |       |
|                                                                                                                                                         |      |       |       |       |

Please provide contact information for the signing actuary and alternate contact(s)

Email

**F. Communication preference between CMS Office of the Actuary and the state's actuary.**

Select one.

*Option 1: The CMS Office of the Actuary can communicate directly with the state's actuary and should copy the state on all written communication and all appointments for verbal discussions.*

*Option 2: The CMS Office of the Actuary can communicate directly with the state, and the state will relay all written communication to their actuary and set up time for any potential verbal discussions.*

|                                                       |                                                                                      |
|-------------------------------------------------------|--------------------------------------------------------------------------------------|
| <b>G. Filename of the Rate Certification Document</b> | <i>Please enter the full filename of the certification document being submitted.</i> |
|-------------------------------------------------------|--------------------------------------------------------------------------------------|

|                           |                                                                                      |
|---------------------------|--------------------------------------------------------------------------------------|
| <b>G. Filename of the</b> | <i>Please enter the full filename of the certification document being submitted.</i> |
|---------------------------|--------------------------------------------------------------------------------------|

|                                                                                               |  |
|-----------------------------------------------------------------------------------------------|--|
| <b>H. Additional Documents, Related Items and Comments Associated with Rate Certification</b> |  |
|-----------------------------------------------------------------------------------------------|--|

Please enter the electronic file name(s) of all additional attachments, and provide a brief description of how each document relates to the rate certification.

| Document Name | Description |
|---------------|-------------|
|---------------|-------------|

If the number of attachments accompanying this submission exceeds the space provide on this form, check the following box and provide a document providing similar information for all additional attachments. Please refer to Part II of the coversheet.

Complete this page if this contract action does not contains a rate certification.

**Part III. Standard questions for contract actions that do not include a rate certification**

1. The state assures that no contractual terms changing as part of the contract action impact actuarial soundness (as described in 42 CFR 438.4(a)) of capitation rates approved by CMS. If contractual terms are changing that impact actuarial soundness of rates then this would require a new rate certification for CMS review.\*Note that this assurance also applies to rate ranges if the state's actuary certified rate ranges for rating periods prior to July 1, 2018. Check here:

**Please respond to the following additional questions:**

|    |                                                                                                                                                                                                      |     |    |
|----|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|----|
| a. | Does the contract action(s) modify benefits provided by the managed care plan(s)?                                                                                                                    | Yes | No |
| b. | Does the contract action(s) modify the Medicaid beneficiaries served by the managed care plan(s)?                                                                                                    | Yes | No |
| c. | Does the contract action(s) modify the geographic area(s) served by the managed care plan(s)?                                                                                                        | Yes | No |
| d. | Does the contract action(s) modify the contract provision(s) related to risk mitigation strategy(ies) (e.g. risk corridor, medical loss ratio, stop-loss limits, reinsurance, etc.)?                 | Yes | No |
| e. | Does the contract action(s) modify the contract provision(s) related to an existing contract term for an incentive arrangement(s) as defined in 42 CFR 438.6(a) and (b)(2)?                          | Yes | No |
| f. | Does the contract action(s) modify the contract provision(s) related to a withhold arrangement(s) as defined in 42 CFR 438.6(a) and (b)(3)?                                                          | Yes | No |
| g. | Does the contract action(s) modify the contract provision(s) related to a delivery system and provider payment initiative(s) as defined in 42 CFR 438.6(c)?                                          | Yes | No |
| h. | Does the contract action(s) modify the contract provision(s) related to a pass-through payment(s) as defined in 42 CFR 438.6(a) and (d)?                                                             | Yes | No |
| i. | Does the contract action modify the contract provision(s) related to payments to MCOs and PIHPs for enrollees that are a patient in an institution for mental disease as defined in 42 CFR 438.6(e)? | Yes | No |

**For States that utilize rate ranges, please complete the following:**

|    |                                                                                                                                                                                     |     |     |    |
|----|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|-----|----|
| 2. | Does the state propose to modify the capitation rates as part of this contract action(s)? If yes, please complete either Option 2.a. or Option 2.b.:                                | Yes | No  |    |
|    | Option 2.a. Are the capitation rates changing within an actuarially certified rate range (until rating periods beginning on or after July 1, 2018)                                  | Yes | No  |    |
|    | 2.a. 1. Has CMS approved the rate certification certifying these contracted rates? (N/A, if response to 2.a. is no)                                                                 | N/A | Yes | No |
|    | Option 2.b. Are the capitation rates changing within 1.5 percent range of a certified rate consistent with 438.7 (effective with rating periods beginning on or after July 1, 2018) | Yes | No  |    |
|    | 2.b. 1. Has CMS approved the rate certification certifying these contracted rates? (N/A, if response to 2.b. is no)                                                                 | N/A | Yes | No |

*If yes to 2.a.1. or 2.b.1. above, please provide the date of the rate certification(s), the control name (rate review name provided by CMS), and submit a copy of that certification(s). If more than one rate certification is submitted, please provide the detail for each certification and number of total certifications included in the submission.*

*If no to 2.a.1 or 2.b.1., is the actuarial certification(s) currently under review by CMS? (yes/no).* N/A Yes No  
*If Yes, please provide the control name of the rate review.*

*If No, then this appears to be a new rate review and the state should submit a rate certification to CMS for review.*